

		(<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail at the client's last known address and confirming that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. Counsel also has declared a justifiable reason to be relieved as counsel — that the client has failed to communicate or cooperate with counsel even though Counsel has made repeated efforts to contact the client. In addition, there are no substantive hearings on calendar and trial has not been set. Thus, Plaintiff Sebastian Hernandez will have sufficient time to find new counsel and will not be unduly prejudiced in his ability to prepare for and try the case. In any case, no opposition has been filed setting forth prejudice to Plaintiff Sebastian Hernandez or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. Counsel shall give notice of this ruling in the manner ordered by the court.
3	Palmer vs. Ultimo 30-2025-01483804	<u>Motion to Set Aside Default</u> Cross-Defendant Anthony Ultimo's Motion to Set Aside Default is taken OFF CALENDAR pursuant to the Request for Dismissal of the Cross-Complaint as to Anthony Ultimo and Roes 1-10 filed June 3, 2026 (ROA #93).

4	Pinnacle Flooring, Inc. vs. Ahir 30-2025-01497273	<u>Motion for Entry of Judgment</u> Plaintiff Pinnacle Flooring, Inc.'s Application for Entry of Stipulated Judgment is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Pinnacle Floring, Inc. and against Defendants Mehul Ahir and Ketty Ahir in the amount of \$69,500 plus \$7,140 in reasonable attorney's fees. Plaintiff Pinnacle Flooring, Inc. is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendants Mehul Ahir and Ketty Ahir and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Pinnacle Flooring, Inc. 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. The court will not enter judgment until Defendants Does 1-10 have been dismissed from this action. <u>Pending Motion</u> Plaintiff Pinnacle Flooring, Inc. moves for an order to enter judgment against Defendants Mehul Ahir and Ketty Ahir pursuant to the Settlement Agreement dated September 18, 2025. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement."
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